

		The Court further finds the Lease is not substantively unconscionable. Plaintiff contends “the delegation clause is unconscionable and unenforceable” and “directs this challenge to the delegation clause itself.” (Opp. at 10:19-20.) As such, any claim of unconscionability must be specific to the delegation clause itself. (<i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal.App.4th 231, 247-248 [citing <i>Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 73].) The cost-allocation terms are not unconscionable as it permits Plaintiff to request a reduction or waiver of fees directly from the arbitrator or that a Third Party Beneficiary voluntarily pay an additional share of fees. As discussed above, MBUSA is explicitly identified as a Third Party Beneficiary. The forum-selection term is not unconscionable as neither Plaintiff nor MBUSA have veto power over the choice of forum expressly agreed upon by the parties, the American Arbitration Association. Rather, the arbitration provision provides Plaintiff with an additional opportunity to choose another organization if MBUSA agrees. Finally, while Plaintiff appears to contend the class action waiver is invalid and voids the entire arbitration section, Plaintiff does not demonstrate how this claim of unconscionability is specific to the delegation clause itself. The matter is STAYED pending arbitration. Arbitration Status Review set for 9/23/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. MBUSA to give notice.
6	Jones vs. Uber Technologies, Inc. 30-2025-01456712-CU-PA-CJC	Motion to Vacate Court Order to Compel Arbitration and Lift Stay Plaintiff, Seagen Jones’s motion to vacate order compelling arbitration and lift stay is DENIED. The “motion to vacate” is a disguised and untimely motion for reconsideration. The order is not void and therefore not subject to Code of Civil Procedure section 473, subdivision (d). The court declines to act under Code of Civil Procedure section 128, subdivision (a)(8). Clerk to give notice.